

trade upon the father's taking the son into partnership (*c*). But where a father covenanted upon the marriage of his son to pay 2,000*l.* by way of portion, and afterwards by his will bequeathed to his son certain powder works *and so much money* as when added to the powder works would make up the sum of 10,000*l.*, the amount in money required to make up the sum of 10,000*l.* was in fact an ordinary legacy, and was therefore applied in satisfaction of the marriage portion (*d*). [So where a father gave a bond for the payment of a sum of 10,000*l.* to his reputed son on a future day, and shortly before the day of payment took the son into partnership with him, and the articles provided that 19,000*l.* of the capital brought in by the father should belong to the son, it was held that the bond was satisfied (*e*).]

6. **Intention expressed.**—A legacy will not be adeemed by a subsequent advance if the latter be *expressed* to be in satisfaction of some other and quite different claim, as in satisfaction of a legacy under the will of a former testator (*f*), or if the subsequent advance be for a particular purpose, as to buy furniture (*g*).

7. **Legacies and advances.**—Legacies to a child are always regarded as *portions* unless it be otherwise expressed (*h*), and so are all advances *inter vivos* by a parent to a child unless the instrument itself show (as sometimes happens) that the second gift was *alio intuitu* and not meant as a portion (*i*).

8. **Advance of less amount.**—Where the subsequent advance is of *less* amount than the *previous [*405] legacy, it was for some time doubtful what would be the effect—whether the advance would adeem the *whole* legacy (*a*), or whether the doctrine of ademption would be

(*c*) *Holmes v. Holmes*, 1 Bro. C. C. 555; [see *Re Lawes*, 20 Ch. D. 81.]

(*d*) *Bengough v. Walker*, 15 Ves. 507.

[(*e*) *Re Lawes*, 20 Ch. D. 81.]

(*f*) *Baugh v. Reed*, 3 B. C. C. 192.

(*g*) *Robinson v. Whitley*, 9 Ves. 577.

(*h*) *Ex parte Pye*, 18 Ves. 151, per Lord Eldon; *Shudall v. Jekyll*, 2

Atk. 518, per Lord Hardwicke; *Pym v. Lockyer*, 5 M. & Cr. 35; *Ellison v. Cookson*, 1 Ves. jun. 107, per Lord Thurlow; *Leighton v. Leighton*, 18 L. R. Eq. 458.

(*i*) *Baugh v. Reed*, 3 B. C. C. 192; *Monck v. Monck*, 1 B. & B. 298; *Leighton v. Leighton*, 18 L. R. Eq. 458.

(*a*) *Hartop v. Whitmore*, 1 P. W.